77. For highway contract routes that meet the Article 32.2 criteria, is the required Union notification done at the National Level?

Response: Yes.

78. Are MVS new work postal support employees (PSEs) allowed to transfer between postal installations or Districts?

Response: No.

79. Is it appropriate to abolish residual Tool and Parts Clerk positions and establish General Clerk positions when Tool and Part positions become vacant?

Response: No. The Tool and Parts Clerk position is a viable senior qualified position for all Motor Vehicle employees.

80. What is the current policy on the timely repair of air conditioning in Postal Vehicle Service (PVS) vehicles?

Response: Cargo vans, tractors, and spotters purchased with air conditioning must have the air conditioning system maintained as designed. During summer months or times when the temperature is expected to exceed 75 degrees, these vehicles must have the air conditioning system repaired within one (1) week from the date the VMF is notified. In the event parts must be ordered to perform the repair, the vehicle may be placed back in service for a period of up to one (1) week until the parts are received. When the heat index is above 100, the vehicle must be repaired immediately and not delayed for the one (1) week. Parts must be ordered in an express manner when the weather conditions are expected to exceed 75 degrees. Air conditioning repairs may be postponed until the scheduled maintenance occurs when that delay would exceed the one-week time frame if temperatures are projected to remain below 75 degrees for the entire time until the next scheduled maintenance.

81. **Must the Union file any and all article 32.2 grievances at the National level and is the Supplying Principles and Practices (SPP) a Postal Service Handbook or a Manual?**

Response: No, The Union may file an alleged violation of Article 32.2 at the appropriate step of the grievance and arbitration process based on the facts and circumstances of the issue. The Supplying Principles and Practices (SPP) is not a Postal Service Handbook or a Manual; it is an internal management guidance.

82. **Is the Schedule Examiner bargaining unit work?**

Response: The Schedule Examiner is bargaining unit work, and supervisors (and EAS employees) cannot perform bargaining unit work unless one of the exceptions provided for in Article 1.6 applies.

83. **What is the level of a Driver Safety Instructor?**

Response: The Driver Safety Instructor's position was upgraded from the level PS-07 to the level PS-08 in 2017.

84. **Is it permissible for a Supervisor to perform the duties of a Clerk Vehicle Dispatcher?**

Response: It is permissible for the Supervisor, Transportation Operations (STO) to perform dispatch duties intermittently for the purpose of providing relief or for unforeseen circumstances. However, a Supervisor should not perform dispatching duties for more than one (1) hour per day, including lunch and breaks. It is appropriate to post these jobs for bid when there are sufficient workhours and in the event there are insufficient workhours to justify a full-time assignment, these duties must be performed by bargaining unit employees of the MVS Craft.

85. **Are USPS Drivers exempt from certain DOT requirements?**

    Response: USPS drivers holding a CDL are required to self-certify to their state that they operate or expect to operate in "in excepted interstate commerce" …. which will result in PVS drivers being exempt from the interstate requirements. A USPS driver excepted from the interstate requirement, after self-certification will still be allowed to cross state lines in the course of performing their driving duties with the USPS. In addition, the Postal Service will instruct the medical contract unit performing the DOT medical examinations that all PVS drivers holding a CDL are excluded from the DOT interstate requirement and the only requirement for MVS positions is an intrastate CDL, provided the driver has self-certified to their state.

86. **Are PVS drivers required to use scanners as part of the Surface Visibility (SV) program?**

    Response: Yes, although no group of employees have exclusive jurisdiction over the use of hand-held scanners and scanning may be performed by any craft as an integral part of their duties.

87. **Do Regional Instruction (RI) 399 Procedures apply to the Motor Vehicle Service Craft?**

    Response: No, the Motor Vehicle Service Craft is not a party to the April 29, 1992 MOU, Re: RI 399 Dispute Resolution Procedures (DRP). In addition, subsequent MOUs and/or updates to RI 399 DRP and mail processing inventories do not apply to the Motor Vehicle Craft.

88. **How should the vehicle cost as a line item on the Article 32.2 cost comparison be calculated?**

    Response: The vehicle cost should be depreciated over the service life of the vehicles (See Handbook PO-701, Exhibit 221.211) currently at the rate of 1/8th the cost of the trucks and 1/12th the cost of the trailers until the vehicles has been depreciated. If the vehicles are still in service at the end of the service life, these costs will no longer be included in the Article 32.2 cost comparison.

89. **What is the approved Consent form and time limitation for limited queries of the Federal Motor Carrier Safety Administration (FMCSA) Drug and Alcohol Clearinghouse?**

    Response: The approved Clearinghouse Consent form for limited queries is dated November 23, 2020 which is part of the Step 4 settlement in Q18V-4Q-C20375622/HQTV20200376. This consent and authorization is valid for two (2) years from the date it is signed. The consent will no longer be valid if the employee is not in a safety sensitive position which requires a CDL.